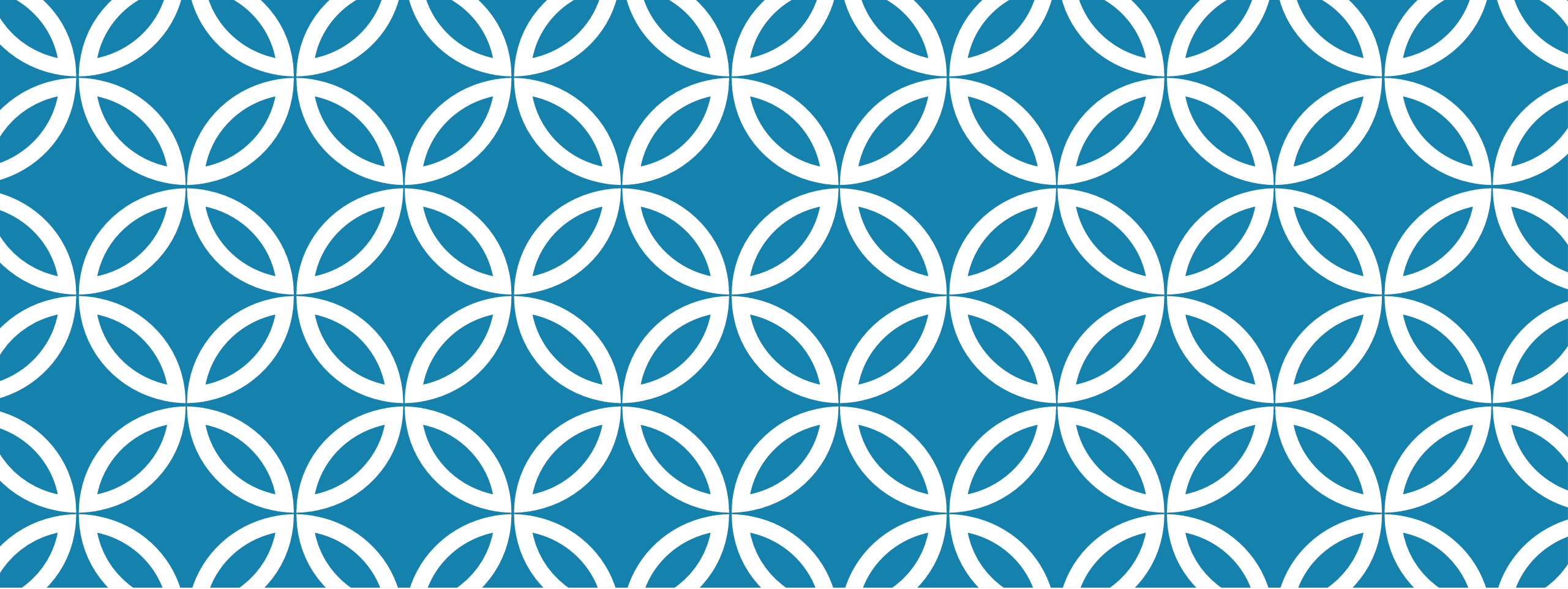




PUBP309: EDUCATION POLICY

**EDUCATION AND INDIAN
CONSTITUTION**

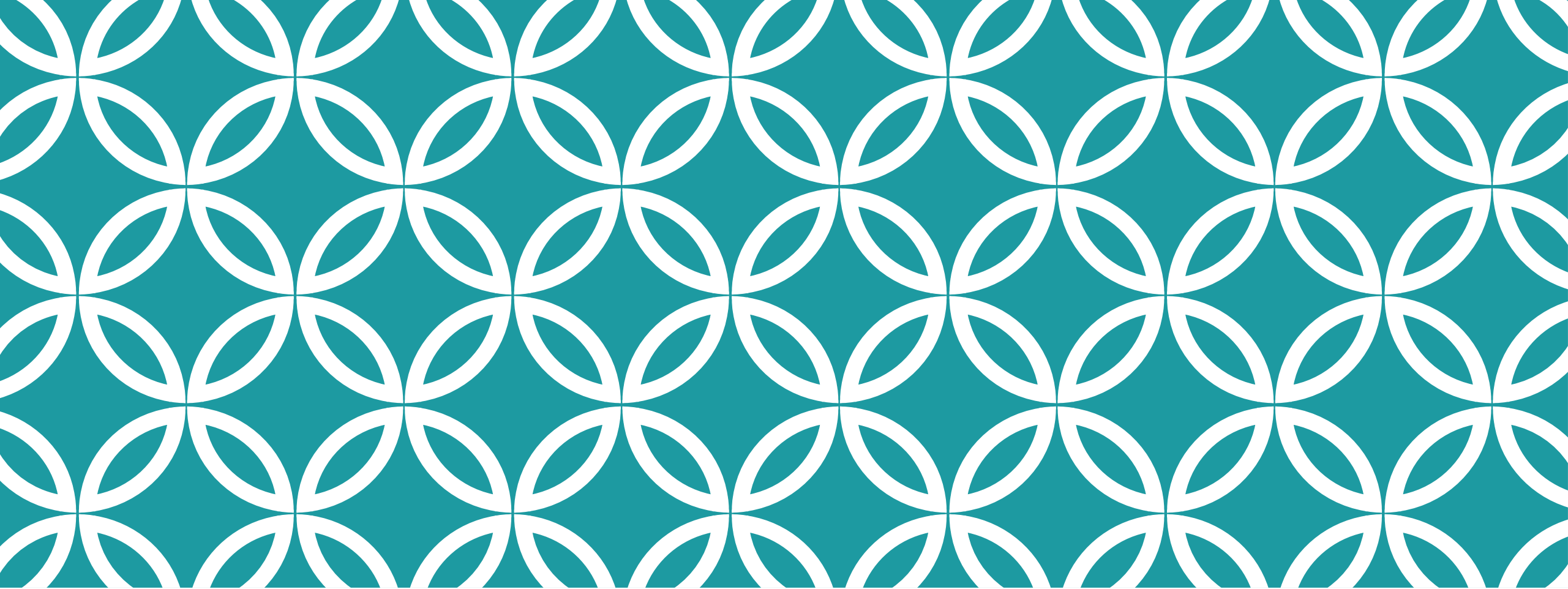
Shivakumar Jolad
FLAME University

CONSTITUTION AND PUBLIC POLICY

Relation between public policy and constitution

Legislative powers; Process of law making

Education and Constitution



CONSTITUTIONAL JOURNEY OF INDIAN EDUCATION



Browse Historical Constitutions

The Constitution of India
Bill (Unknown, 1895)

Indian Councils Act, 1909

The Congress-League
Scheme 1916 (INC & AIML)

Karachi Resolution (1931)

Poona Pact 1932 (B.R
Ambedkar and M.K
Gandhi)


Government of India Act
1935


Government of India Act,
1919

The Revolutionary
(Hindustan Socialist
Republican Association,
1925)

The Commonwealth of
India Bill (National
Convention, India, 1925)

Constitution of Free India :
A Draft (M.N. Roy, 1944)

Political Demands of
Scheduled Castes
(Scheduled Castes
Federation, 1944)

States and Minorities (Dr.
B.R. Ambedkar, 1945)

Nehru Report (Motilal
Nehru, 1928)


Irwin Declaration (Lord
Irwin, 1929)

Declaration of Purna
Swaraj (Indian National
Congress, 1930)

Gandhian Constitution for
Free India (Shriman
Narayan Agarwal, 1946)

Sapru Committee Report
(Sir Tej Bahadur Sapru,
1945)

Outline of a New
Constitution (B.N. Rau,
1946)


Cabinet Mission Plan
(Cabinet Mission, 1946)

Preliminary Notes on
Fundamental Rights 1946
(B.N. Rau)

Manipur State Constitution
Act, 1947


Indian Independence Act
1947 (UK Parliament)

Draft Constitution of the
Republic of India (Socialist
Party, 1948)

Draft Constitution of India,
1948

https://www.constitutionofindia.net/historical_constitutions/

CONSTITUTIONAL HISTORY OF EDUCATION

Constitution of India Bill 1895, also referred to as *Swaraj Bill*

- ▮ S-25. State Education shall be Free in the Empire.
- ▮ S-26. Primary Education shall be Compulsory in the Empire.

Government of India Act 1919

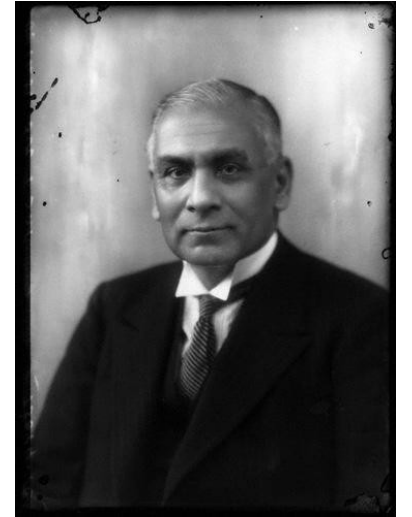
- ▮ Transferred subjects: **Education**, Health, agriculture, forestry

The Commonwealth of India Bill (National Convention), India, 1925

- ▮ 13 (d) All persons in the Commonwealth of India have the **right to free elementary education**, and ***such right shall be enforceable so soon as due arrangements shall have been made by the competent authority***

Historical Constitutions CAD- CLPR:

https://www.constitutionofindia.net/historical_constituti



Sir Tej Bahadur
Sapru



Annie
Besant

The Committee Appointed by The All Parties' Conference 1928

The Nehru Report *An Anti-Separatist Manifesto*

CHAPTER VI OTHER PROPOSALS

We shall now consider the main provisions of the constitution, as suggested by us. These are framed as has already been stated, on the model of the dominions.

The resolution of the Madras Congress lays down that the basis of the constitution must be a Declaration of Fundamental Rights. Considerable stress has been laid on this

Certain changes and additions have also been made in some other articles. In the article dealing with the right to free elementary education we have added that there will be no "distinction of caste or creed in the matter of admission into any educational institutions maintained or aided by the state".

(v) All citizens in the Commonwealth of India have the right to free elementary education without any distinction of caste or creed in the matter of admission into any educational institutions, maintained or aided by the state, and such right shall be enforceable as soon as due arrangements shall have been made by competent authority.

Granville Austin in *India's Constitution: Cornerstone of a Nation*, highlights that the fundamental rights section of the Nehru Report was 'a close precursor of the *Fundamental Rights* of the Constitution [of India, 1950]...10 of the 19 subclauses re-appear, materially unchanged, and three of the Nehru rights are included in the *Directive Principles*'.

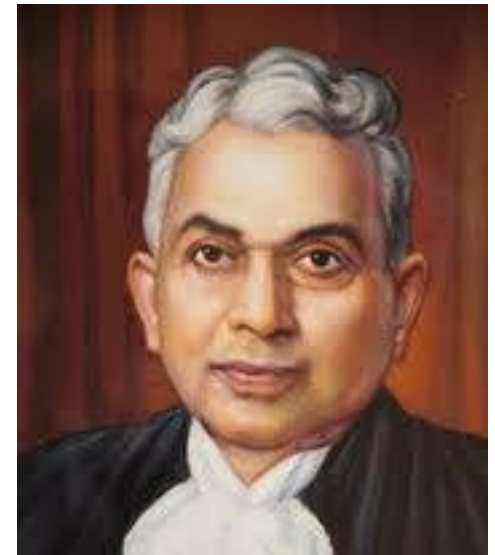
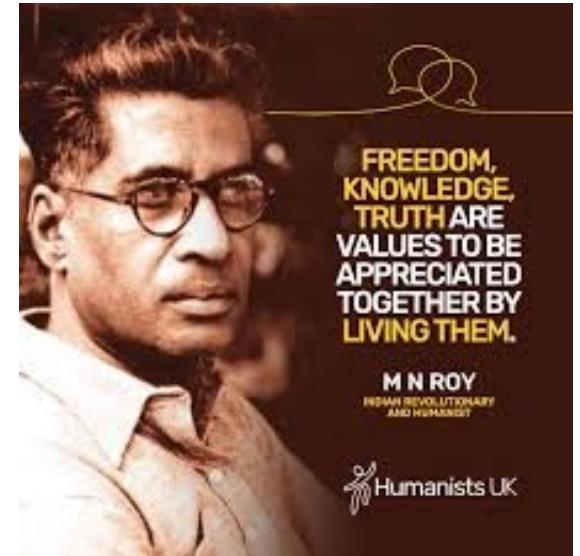
CONSTITUTIONAL HISTORY OF EDUCATION

Constitution of Free India: M N Roy (1944)

- ▮ 1(q) Education for all children up to the age of fourteen shall be free, compulsory and **secular**.
- ▮ (128). The functions of local self-government are:
 - (b) Education primary and secondary (up to matriculation);

Preliminary Notes on Fundamental Rights 1946
(B.N. Rau)

- ▮ Distinction within ***Fundamental rights- Positive actions and negative abstentions***
- ▮ . The State shall, as far as possible, secure to each citizen –
- ▮ (2) the right to education-- In particular, the State shall make provision for free and compulsory primary education.



Sir Benegal Narsinga⁷



A New Republic

A New Republic - Episode 12: The Nehru Report

5 years a

History & Cult...

<https://soundcloud.com/anewrepublic/a-new-republic-episode-12-the>

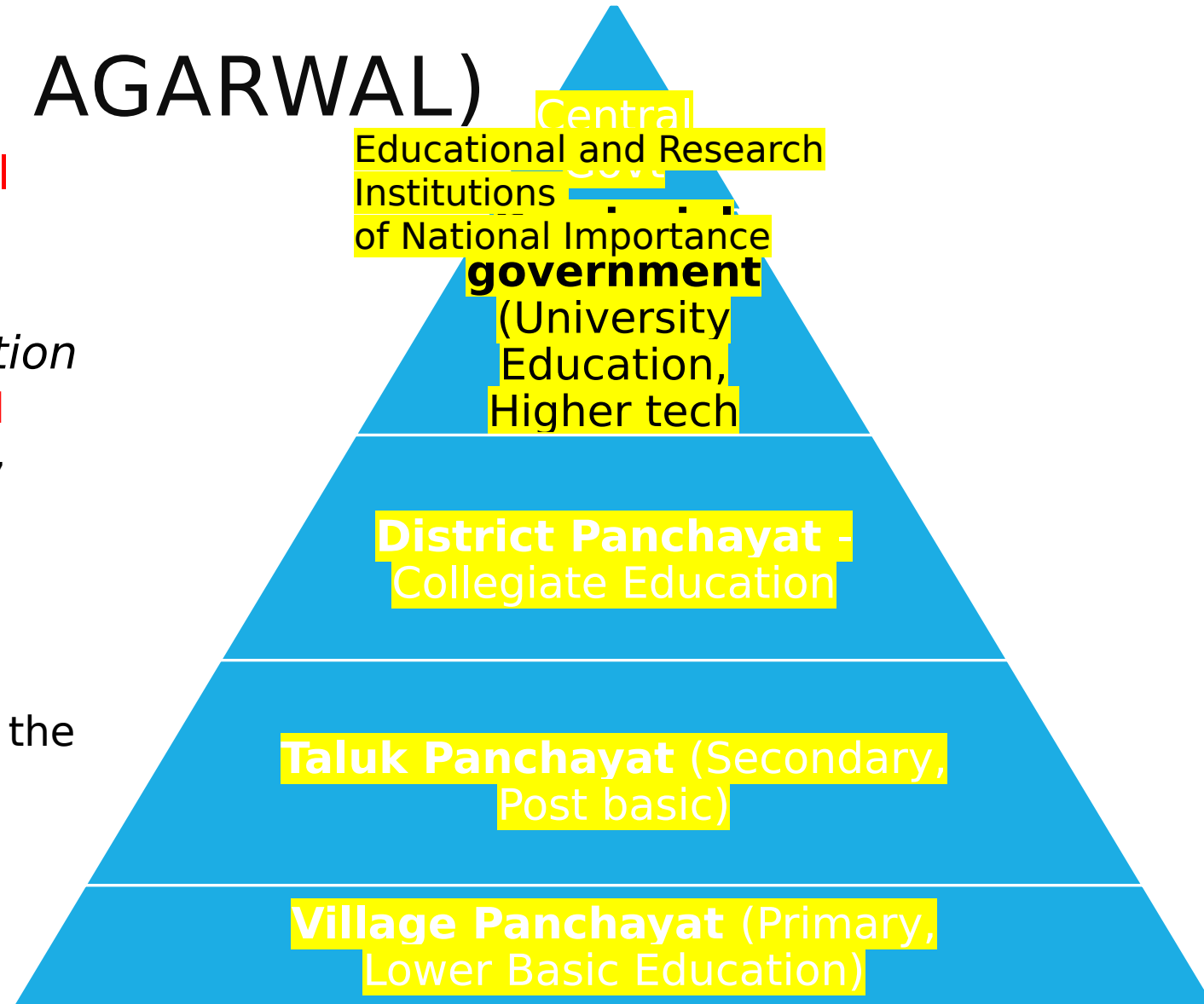
GANDHIAN CONSTITUTION FOR FREE INDIA

(SRIMAN NARAYAN AGARWAL)

Fundamental Rights: Every citizen shall be entitled to free Basic education, otherwise known as '**Nai Talim.**'

Functions of **Village Panchayat**: *Education*

- ▢ (a) to run a **Primary or Lower Basic School** through the medium of a productive craft, thus combining cultural and technical education.
- ▢ (b) to maintain a Library and a Reading Room. Books in the library should be educative, having a direct bearing on the social, economic and political activities of the village.
- ▢ (c) to run a Night School for adults.



CHAPTER ON EDUCATION

CHAPTER XVIII

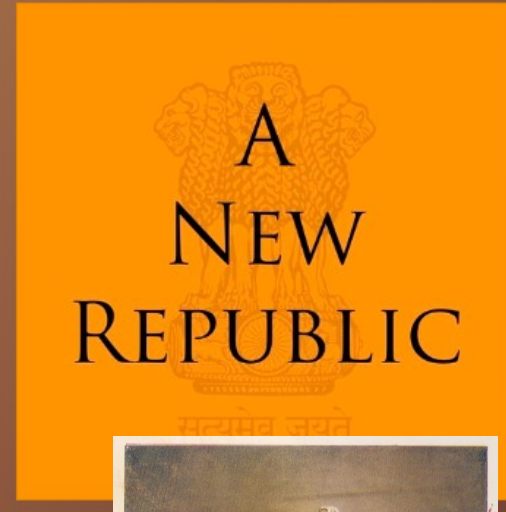
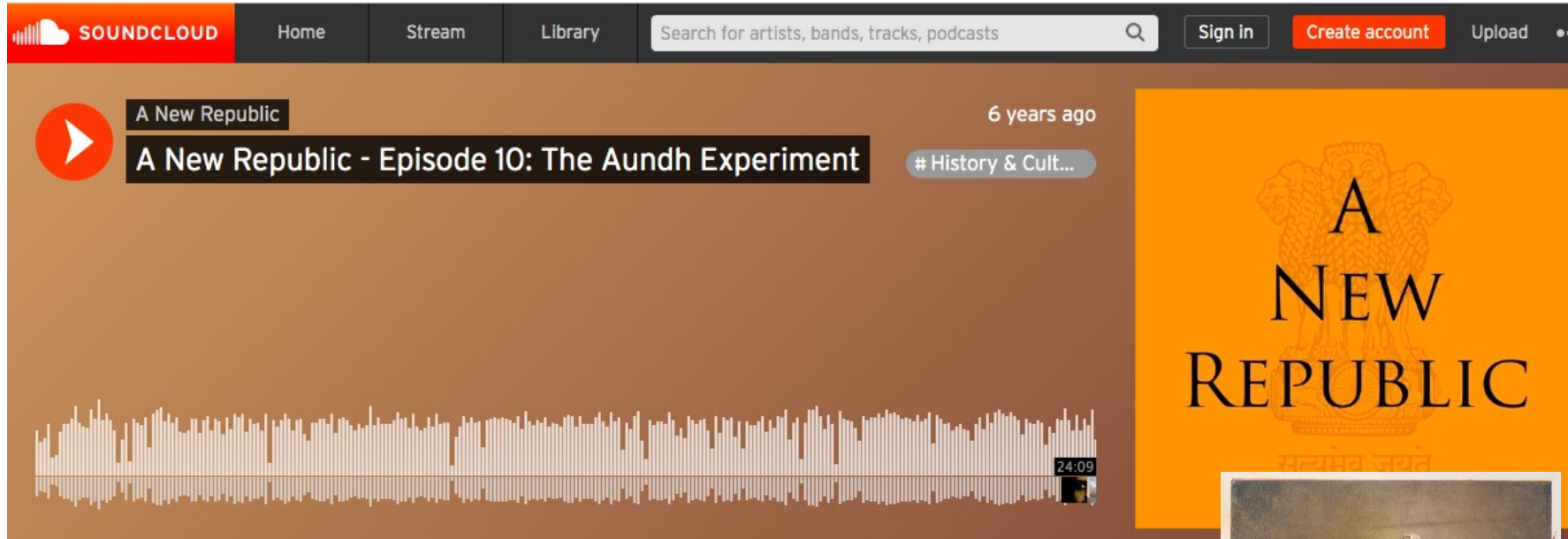
EDUCATION

The present system of **education** in India has failed to meet the vital needs of national life; it is hopelessly out of touch with social and economic realities and envisions no creative and inspiring ideal. Far-reaching reforms, therefore, will have to be introduced under the Swaraj Constitution. The following are a few 'key points':



(a) Basic **education** shall be free and compulsory. It shall be imparted to all the boys and girls up to the age of 14, through a productive craft like spinning, weaving and agriculture. Such **education** would serve a treble purpose in a poor country like India:

AUNDH EXPERIMENT- GANDHIAN CONSTITUTION



[https://soundcloud.com/anewrepublic/a-new-republic-episode-10-t](https://soundcloud.com/anewrepublic/a-new-republic-episode-10-the)
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CONSTITUENT ASSEMBLY DEBATES

Debates on **fundamental Rights**

Directive principles of state policy

Placing education under concurrent list

Upliftment for the socio-economically backward society; Affirmative action



SAMVIDHAAN- MAKING OF CONSTITUTION



General introduction

Episode 3: Fundamental Rights

Episode 4: Directive Principles of state Policy

Conscience of the
Constitution

PART III: Fundamental Rights

PART IV: Directive Principles of state
Policy

CONSTITUENT ASSEMBLY DEBATES – ARTICLE 45

Article 45 - Directive principle of state policy

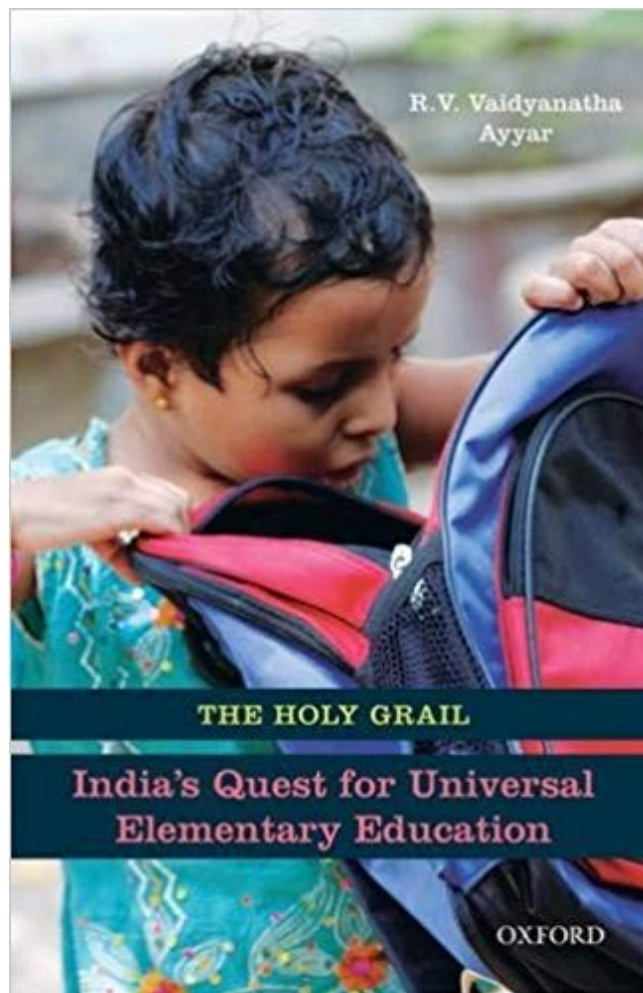
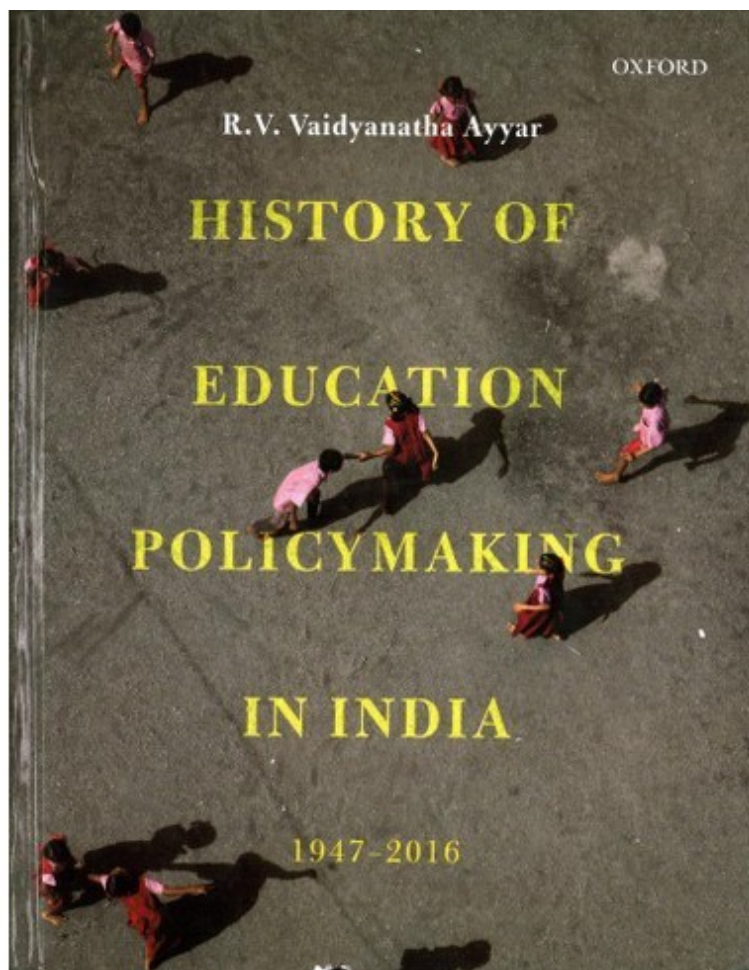
▮ (1950): the State shall **endeavour** to provide, within a period of ten years from the commencement of the Constitution, for free and compulsory education for all children until they complete the age of 14 years

M. Ananthasayanam Ayyangar: (CAD VII, Nov 19, 1948)

Sir, the object of differentiating certain rights as justiciable and non-justiciable rights is well-known.

In Article 26 it is said that the State should within a period of ten years introduce free compulsory education ... Let us assume that the State does not do so, then can any court of law enforce it? Against whom? In case a decree is granted by a court of law, who will carry it out? If the Government does not carry it out, can the High Court or the Supreme Court enforce it? Is it open to the Supreme Court to change such a government? With its authority, can

it by an officer of the Court, an Amin or a Sheriff imprison all the Ministers, and bring into existence a new set of Ministers? In the nature of things, these are only directives and cannot be justiciable rights at all ... These are (Directive) principles which the Government must keep in mind, whatever Government may be in power, and they must be carried out. We have incorporated them in the Constitution itself because we attach importance to them. But to classify them as Fundamental Rights as in Part III would be to take away the difference between the one set and the other, and making all the rights justiciable, which, in the nature of things, is impossible. *There is no use being carried away by sentiments. We must be practical.*²⁸ (emphasis added)



CONSTITUTION OF INDIA

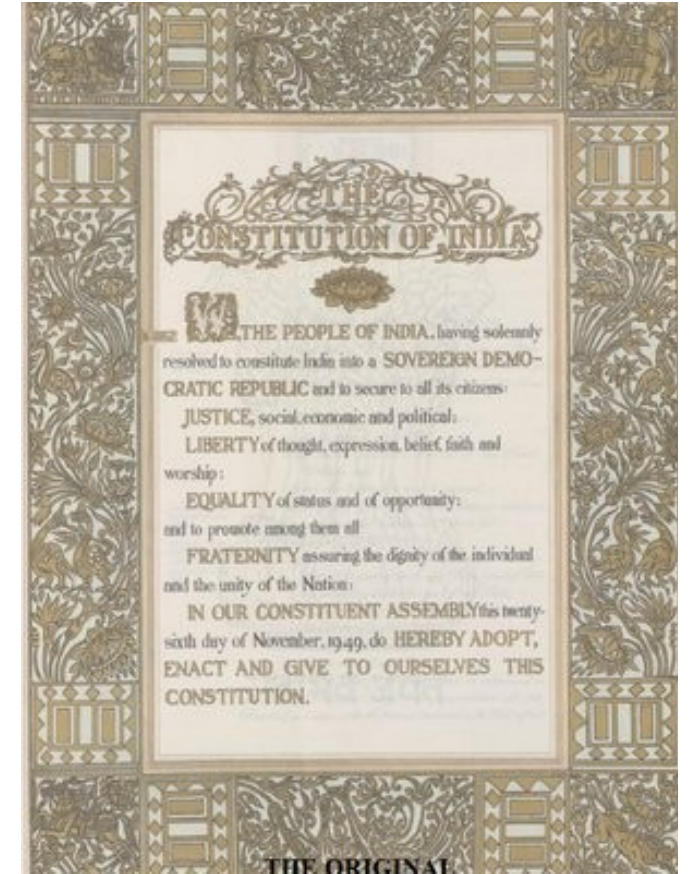
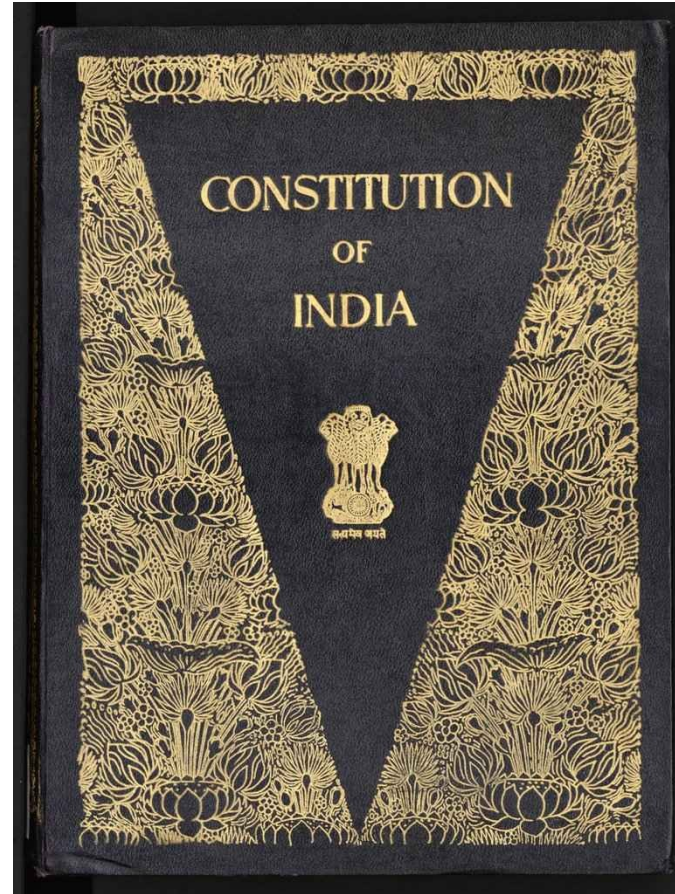


Image source: wikipedia , Journal of law and society and frontline

RIGHTS, DUTIES- CHILDREN EDUCATION

Article 21A (86th Constitutional Amendment) mandates that 'To provide free and compulsory education to all children of the age of 6-14 years in such a manner as the State may, by law, determine'. (86th Constitutional Amendment, 2002)

Article 45 (2002): The State shall *endeavour* to provide **early childhood care and education** for all children until they complete the age of six years.”.

Article 51 (A) of the Constitution relating to Fundamental duties of the Citizens mandates that

“(k) *who is parent or guardian to provide opportunities for education to his child, or as case may be, a ward between age of 6-14 years*”. (Article 51 a: It was inserted by the Constitution (Forty-second Amendment) Act, 1976)

Article 24. (Prohibition of Child labour - 14 years)

▮ No child below the age of fourteen years shall be employed to work in any factory or mine or engaged in any other hazardous employment.

RELIGIOUS INSTRUCTION, LANGUAGE

28. (1) No religious instruction shall be provided in any educational institution wholly maintained out of State funds.

□ (2) Nothing in clause (1) shall apply to an educational institution which is administered by the State but has been established under any endowment or trust which requires that religious instruction shall be imparted in such institution.

□ (3) No person attending any educational institution recognised by the State or receiving aid out of State funds shall be required to take part in any religious instruction that may be imparted in such institution

Article 350 (A) enjoins that “it shall be the **endeavour** of every State and of every local authority within the state to provide adequate facilities in the **mother-tongue** at the primary stage of education to children belonging to linguistic minority groups”.

(This provision was not part of the Constitution of India, 1950. It was inserted by the Constitution (Seventh Amendment) Act, 1956.)

PROHIBITION OF DISCRIMINATION AND RIGHTS OF MINORITIES- TO ESTABLISH INSTITUTIONS

(15) Prohibition of discrimination on grounds of religion, race, caste, sex or place of birth

- ▮ **15.** (1) The State shall not discriminate against any citizen on grounds only of religion, race, caste, sex, place of birth or any of them.
- ▮ 15 (3) Nothing in this article shall prevent the State from making any special provision for women and children.
- ▮ [(4) Nothing in this article or in clause (2) of **article 29** shall prevent the State from making any special provision for the advancement of any socially and educationally backward classes of citizens or for the Scheduled Castes and the Scheduled Tribes.]

(29) (2) No citizen shall be denied admission into any educational institution maintained by the State or receiving aid out of State funds on grounds only of religion, race, caste, language or any of them.

(30) (1) All minorities, whether based on religion or language, shall have the right to establish and administer educational institutions of their choice

EDUCATION IN CONCURRENT LIST

The 42nd Amendment to the Constitution in 1976 brought education under the Concurrent List,

Article 246- **List III**

2[25]. **Education**, including technical education, medical education and universities, subject to the provisions of entries 63, 64, 65 and 66 of List I; vocational and technical training of labour.]

List II—State List

Agriculture, including agricultural education and research, protection against pests and prevention of plant diseases

EDUCATION INSTITUTIONS IN UNION LIST

(63). The institutions known at the commencement of this Constitution as the Benares Hindu University, the Aligarh Muslim University and the 1[Delhi University; the University established in pursuance of article 371E;] any other institution declared by Parliament by law to be an institution of national importance.

64. Institutions for scientific or technical education financed by the Government of India wholly or in part and declared by Parliament by law to be institutions of national importance.

65. Union agencies and institutions for—

- (a) professional, vocational or technical training, including the training of police officers; or
- (b) the promotion of special studies or research; or
- (c) scientific or technical assistance in the investigation or detection of crime.

66. Co-ordination and determination of standards in institutions for higher education or research and scientific and technical institutions.

SEVENTH SCHEDULE

(Article 246)

List I—Union List

CHILD RIGHTS

Article 24 : No child below the age of 14 years shall be employed to work in any factory or mine or engaged in hazardous employment.

Article 39 : The state shall direct its policy toward securing that the tender age of **children is not abused and that citizens are not forced by economic necessity** to enter avocation unsuited to their age or strength and that children are given opportunities and facilities to develop in a healthy manner and in conditions of freedom and dignity and that childhood and youth are protected against exploitation and against moral and material abandonment.

Article 15: Right against discrimination.

Article 23 : **Right to being protected from being trafficked and forced into bonded labour**

Amendment
of [section 2](#).

4. In [section 2](#) of the principal Act,—

(a) clause (i) shall be renumbered as clause (ia) thereof and before clause (ia) as so renumbered, the following clause shall be inserted, namely:—

‘(i) “adolescent” means a person who has completed his fourteenth year of age but has not completed his eighteenth year;’;

(b) for clause (ii), the following clause shall be substituted, namely:—

‘(ii) “child” means a person who has not completed his fourteenth year of age or such age as may be specified in the Right of Children to Free and Compulsory Education Act, 2009, whichever is more;’.

5. For section 3 of the principal Act, the following section shall be substituted, namely:—

“3. (1) No child shall be employed or permitted to work in any occupation or process.

(2) Nothing in sub-section (1) shall apply where the child,—

(a) helps his family or family enterprise, which is other than any hazardous occupations or processes set forth in the Schedule, after his school hours or during vacations;

(b) works as an artist in an audio-visual entertainment industry, including advertisement, films, television serials or any such other entertainment or sports activities except the circus, subject to such conditions and safety measures, as may be prescribed:

Provided that no such work under this clause shall effect the school education of the child.

Explanation.—For the purposes of this section, the expression,

THE CHILD LABOUR (PROHIBITION AND REGULATION)
AMENDMENT ACT, 2016
No. 35 OF 2016

[29th July, 2016.]

Act further to amend the Child Labour (Prohibition and Regulation) Act, 1986.

Substitution
of new
section for
section 3.

Prohibition of
employment
of children in
any occupa-
tion and
process.

THE FRAMING
OF
INDIA'S CONSTITUTION
SELECT DOCUMENTS

THE PROJECT COMMITTEE

Chairman

B. SHIVA RAO

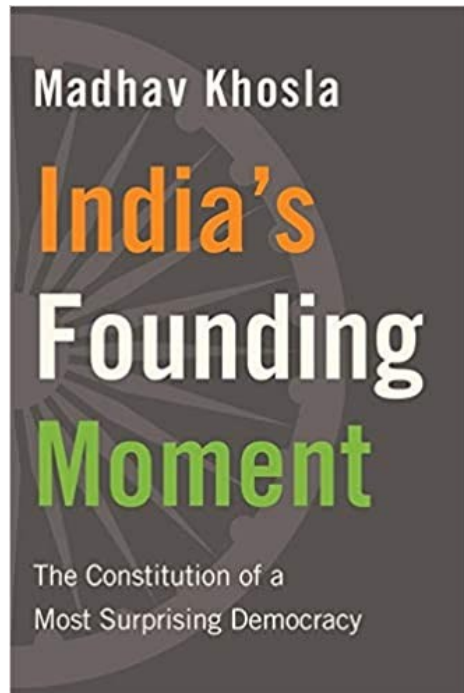
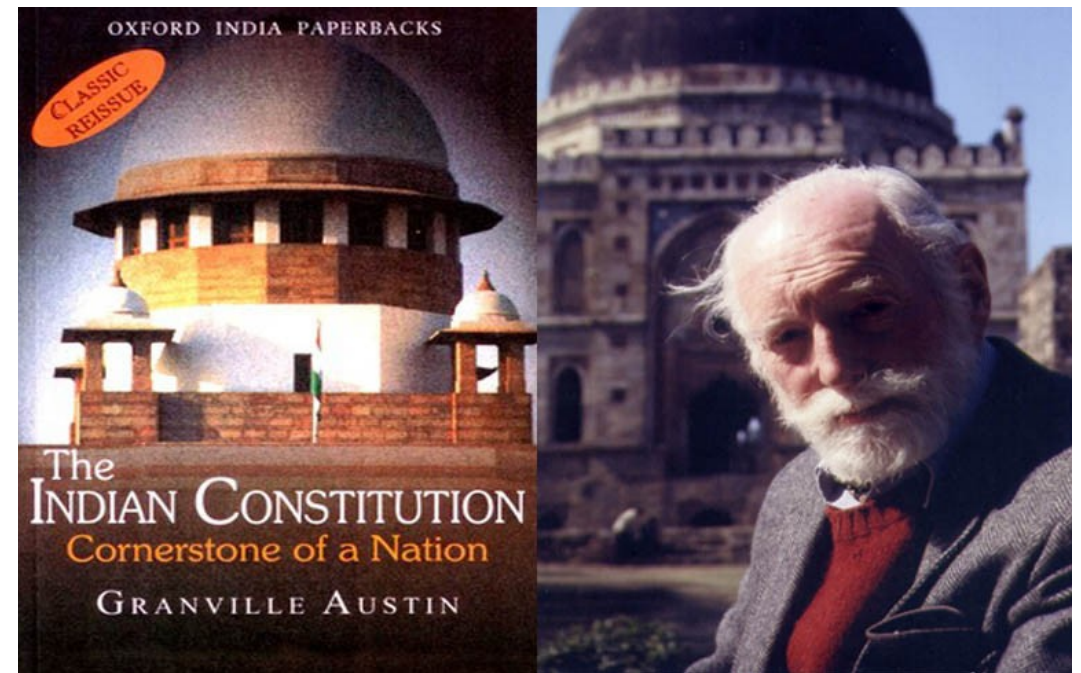
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BY
SIR BENEGAL RAU

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